

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 773

BY WAYS AND MEANS COMMITTEE

AN ACT

RELATING TO THE DEPARTMENT OF FINANCE; PROVIDING LEGISLATIVE INTENT; AMENDING SECTION 26-2128, IDAHO CODE, TO REMOVE AN OBSOLETE PROVISION; REPEALING SECTION 26-2170, IDAHO CODE, RELATING TO DEFINITIONS, PURPOSE, AND RESTRICTIONS OF THE IDAHO CORPORATE CREDIT UNION; REPEALING SECTION 26-2171, IDAHO CODE, RELATING TO ORGANIZATION OF THE IDAHO CORPORATE CREDIT UNION; REPEALING SECTION 26-2172, IDAHO CODE, RELATING TO AMENDMENTS OF THE IDAHO CORPORATE CREDIT UNION; REPEALING SECTION 26-2173, IDAHO CODE, RELATING TO CORPORATE POWERS OF THE IDAHO CORPORATE CREDIT UNION; REPEALING SECTION 26-2174, IDAHO CODE, RELATING TO MEMBERSHIP IN THE IDAHO CORPORATE CREDIT UNION; REPEALING SECTION 26-2175, IDAHO CODE, RELATING TO EXPULSION AND WITHDRAWAL FROM THE FIELD OF MEMBERSHIP OF THE IDAHO CORPORATE CREDIT UNION; REPEALING SECTION 26-2176, IDAHO CODE, RELATING TO MEETINGS AND ELECTIONS OF THE IDAHO CORPORATE CREDIT UNION; REPEALING SECTION 26-2177, IDAHO CODE, RELATING TO THE BOARD OF DIRECTORS OF THE IDAHO CORPORATE CREDIT UNION; REPEALING SECTION 26-2178, IDAHO CODE, RELATING TO OFFICERS OF THE IDAHO CORPORATE CREDIT UNION; REPEALING SECTION 26-2179, IDAHO CODE, RELATING TO THE BOARD OF DIRECTORS OF THE IDAHO CORPORATE CREDIT UNION; REPEALING SECTION 26-2180, IDAHO CODE, RELATING TO LOANS TO MEMBER CREDIT UNIONS BY THE IDAHO CORPORATE CREDIT UNION; REPEALING SECTION 26-2181, IDAHO CODE, RELATING TO COMPENSATION FOR CORPORATE OFFICERS; REPEALING SECTION 26-2182, IDAHO CODE, RELATING TO SHARES AND DEPOSITS; REPEALING SECTION 26-2183, IDAHO CODE, RELATING TO RESERVE ALLOCATIONS OF THE IDAHO CORPORATE CREDIT UNION; REPEALING SECTION 26-2184, IDAHO CODE, RELATING TO DIVIDENDS OF THE IDAHO CORPORATE CREDIT UNION; REPEALING SECTION 26-2185, IDAHO CODE, RELATING TO APPLICABLE PROVISIONS OF THE IDAHO CREDIT UNION ACT; REPEALING SECTION 26-2186, IDAHO CODE, RELATING TO TAXATION OF THE IDAHO CORPORATE CREDIT UNION; REPEALING SECTION 27-406, IDAHO CODE, RELATING TO THE DUTY OF AN OWNER OF A CEMETERY; REPEALING SECTION 27-409, IDAHO CODE, RELATING TO CEMETERIES AND APPLICATION OF LAW; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. IDAHO CODE CLEANUP -- LEGISLATIVE INTENT. It is the intent of the Legislature to ensure that the state laws provided in Idaho Code are streamlined, up-to-date, and essential for the citizens of Idaho, while best serving the public health, safety, and welfare. In accordance with the Idaho Code Cleanup Act, following comprehensive review, the Legislature has identified the provisions of this act as obsolete, outdated, or unnecessary.

SECTION 2. That Section 26-2128, Idaho Code, be, and the same is hereby amended to read as follows:

1 26-2128. LIQUIDITY REQUIREMENTS. (a) Every credit union shall have
 2 on hand as a liquidity reserve an amount equal to four percent (4%) of its
 3 outstanding shares, certificates of deposit, and certificates of indebted-
 4 ness. Share or deposit accounts from which a member may withdraw funds by
 5 the use of a negotiable instrument shall be subject to the liquidity reserve
 6 requirements of subsection (b) of this section and not to the liquidity re-
 7 serve requirements of this subsection. Said liquidity reserves, except as
 8 hereinafter otherwise provided, shall be kept in cash on hand or on deposit
 9 subject to check or draft, with any bank or banks or corporate credit union
 10 located in the state of Idaho, which shall have been approved by the director
 11 as liquidity reserve depositories and shall be computed monthly as follows:
 12 on the basis of average daily bank deposits and average daily cash on hand.

13 (b) Every credit union which provides for its member's share or deposit
 14 accounts from which the member may withdraw funds by the use of negotiable
 15 instrument shall have on hand as a liquidity reserve in addition to the liq-
 16 uidity reserve required by subsection (a) of this section an amount equal
 17 to ten percent (10%) of its share and deposit accounts which are subject to
 18 withdrawal by the use of negotiable instrument. Said liquidity reserves
 19 shall be kept in cash on hand or on deposit subject to check or draft, with any
 20 bank or banks or corporate credit union located in the state of Idaho which
 21 shall have been approved by the director as liquidity reserve depositories
 22 and shall be computed monthly as follows: on the basis of average daily bank
 23 or corporate credit union deposits, and average daily cash on hand.

24 ~~(c) Certificates of deposit issued by the Idaho Corporate Credit Union~~
 25 ~~may be included in meeting the requirements of this section.~~ To the extent a
 26 credit union is required to maintain reserves pursuant to the monetary con-
 27 trol act of 1980 and the implementing regulations of the board of governors
 28 of the federal reserve system, as the same is presently enacted and as it may
 29 be amended in the future, the reserves required to be so maintained shall be
 30 considered as a part of, and not in addition to, the liquidity reserves re-
 31 quired by this section.

32 SECTION 3. That Section [26-2170](#), Idaho Code, be, and the same is hereby
 33 repealed.

34 SECTION 4. That Section [26-2171](#), Idaho Code, be, and the same is hereby
 35 repealed.

36 SECTION 5. That Section [26-2172](#), Idaho Code, be, and the same is hereby
 37 repealed.

38 SECTION 6. That Section [26-2173](#), Idaho Code, be, and the same is hereby
 39 repealed.

40 SECTION 7. That Section [26-2174](#), Idaho Code, be, and the same is hereby
 41 repealed.

42 SECTION 8. That Section [26-2175](#), Idaho Code, be, and the same is hereby
 43 repealed.

44 SECTION 9. That Section [26-2176](#), Idaho Code, be, and the same is hereby
 45 repealed.

1 SECTION 10. That Section [26-2177](#), Idaho Code, be, and the same is hereby
2 repealed.

3 SECTION 11. That Section [26-2178](#), Idaho Code, be, and the same is hereby
4 repealed.

5 SECTION 12. That Section [26-2179](#), Idaho Code, be, and the same is hereby
6 repealed.

7 SECTION 13. That Section [26-2180](#), Idaho Code, be, and the same is hereby
8 repealed.

9 SECTION 14. That Section [26-2181](#), Idaho Code, be, and the same is hereby
10 repealed.

11 SECTION 15. That Section [26-2182](#), Idaho Code, be, and the same is hereby
12 repealed.

13 SECTION 16. That Section [26-2183](#), Idaho Code, be, and the same is hereby
14 repealed.

15 SECTION 17. That Section [26-2184](#), Idaho Code, be, and the same is hereby
16 repealed.

17 SECTION 18. That Section [26-2185](#), Idaho Code, be, and the same is hereby
18 repealed.

19 SECTION 19. That Section [26-2186](#), Idaho Code, be, and the same is hereby
20 repealed.

21 SECTION 20. That Section [27-406](#), Idaho Code, be, and the same is hereby
22 repealed.

23 SECTION 21. That Section [27-409](#), Idaho Code, be, and the same is hereby
24 repealed.

25 SECTION 22. An emergency existing therefor, which emergency is hereby
26 declared to exist, this act shall be in full force and effect on and after
27 July 1, 2026.